

F. Divisional applications

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1. Introduction

A divisional application is a new application which is separate and independent from the earlier application. Therefore, divisional applications are to be treated in the same manner as ordinary applications and are subject to the same requirements, unless specific provisions of the EPC require something different (see **G 1/05**, OJ 2008, 271). The most important provisions on European divisional applications are **Art. 76 EPC** and **R. 36 EPC** (**R. 25 EPC 1973**).

According to Art. 76(1), second sentence, EPC, the divisional application may be filed only in respect of subject-matter which does not extend beyond the content of the earlier application as filed. The divisional application is accorded the same filing date as the parent (earlier) application and benefits from any right of priority of the parent (earlier) application in respect of the subject-matter contained in the divisional application. When determining whether the subject matter of a divisional application extends beyond the content of the earlier application as filed (Art. 76(1), second sentence, EPC) exactly the same principles are to be applied as for extension of subject-matter under Art. 123(2) EPC (G 1/05; see in this chapter II.F.2.1.).

Divisional applications may be amended like any other application. If a divisional application is amended, it must meet the requirements of both Art. 76(1) EPC and Art. 123(2) EPC, so as to preclude the introduction of new subject-matter into the proceedings (see in this chapter II.F.2.2.).

A divisional application (of whatever generation) can be the "earlier application" within the meaning of Art. 76(1) EPC for a further divisional (G 1/06, OJ 2008, 307). According to R. 36(1) EPC the earlier application must still be pending (see in this chapter II.F.3.5.).

It is a ground of opposition and a ground of revocation if the subject-matter of a patent granted on a divisional application extends beyond the content of the earlier application as filed, see Art. 100(c), 138(1)(c) EPC.

The question whether a European divisional application may anticipate its parent ("poisonous divisional") is treated in the context of partial priority in T 557/13 (OJ 2016, A87; referral G 1/15). For a summary of G 1/15 (OJ 2017, A82), see in chapter II.D.5.3. "Multiple priorities or partial priority for one claim".

2. Subject-matter of a divisional application

2.1. Subject-matter extending beyond content of the earlier application

The wording of Art. 76(1) EPC and the wording of Art. 123(2) EPC is so similar (in all three languages) that it is clear that **exactly the same principles** are to be applied for both types of cases when determining what extends beyond the content of the earlier application (G 1/05, OJ 2008, 271). The mere fact that the wording of the French version differs (Art. 76(1), second sentence, EPC: "éléments"; Art. 123(2) EPC: "objet") does not justify a different interpretation (T 276/97). The case law on added subject-matter is summarised in chapter II.E.1.

Art. 76(1) and Art. 123(2) EPC have the **same purpose**, i.e. to create a fair balance between the interests of applicants and patentees, on the one hand, and competitors and other third parties on the other. The idea underlying these provisions is that an applicant should not be allowed to improve his position by adding subject-matter not disclosed in the application as filed, which would give him an unwarranted advantage and could be damaging to the legal security of third parties relying on the content of the original application (G 1/93, OJ 1994, 541; T 873/94, OJ 1997, 456; T 276/97, T 701/97). Both

Art. 76(1) EPC 1973 and Art. 123(2) EPC 1973 enshrine the principle that before grant the legal security of third parties is sufficiently protected by the prohibition of extending the content of the application by amendment beyond what was originally disclosed (T 1387/05).

Since the underlying requirements of Art. 123(2) and 76(1) EPC are the same, there is no harm done if the examining division incorrectly refers to Art. 123(2) EPC (instead of Art. 76(1) EPC) when refusing a divisional application on the grounds that its subject-matter extended beyond the parent application (T 542/94).

2.1.1 Directly and unambiguously derivable from content of earlier application as filed

The subject-matter of a divisional application must be **directly and unambiguously derivable** from the earlier application as filed (see G 1/06, OJ 2008, 307). More specifically, subject-matter of the divisional must be directly and unambiguously derivable by the skilled person from the disclosure of the earlier application as filed, as determined by the totality of its claims, description and figures when read in context (see consolidated cases T 1500/07, T 1501/07, T 1502/07; see also T 961/09).

Subject-matter claimed in the divisional application has to be compared with the content of the earlier (parent) application as filed, whereby the content of an application comprises the whole disclosure, express or implied, that is directly and unambiguously derivable from the application including information which is implicit and immediately and unambiguously apparent to a person skilled in the art reading the application (T 423/03). In other words, it has to be established whether technical information has been introduced into the divisional application which a skilled person would not have objectively and unambiguously derived from the earlier application as filed (T 402/00).

The "content" within the meaning of Art. 76 EPC is to be interpreted as the **whole technical content** of the earlier application (G 1/05, OJ 2008, 271, point 9.2 of the Reasons). Art. 76 EPC does not require that the content be disclosed in the claims of the earlier application. It only requires that the subject-matter be disclosed as such anywhere in the whole disclosure of the earlier application (T 211/95, T 1026/03, T 314/06).

The case law on the question of when subject-matter is directly and unambiguously derivable (including decisions applying Art. 76 EPC) is summarised in chapter II.E.1.

2.1.2 Sequence of divisionals – derivable from each of the preceding applications as filed

In G 1/06 (OJ 2008, 307) the Enlarged Board ruled that Art. 76 EPC 1973 also applied to divisionals from divisionals, because – if not specifically provided otherwise – divisionals must be treated just like any other application. Therefore a divisional (of whatever generation) could be the "earlier application" within the meaning of Art. 76(1) EPC 1973 for a further divisional. In the case of a sequence of applications consisting of a root (originating) application followed by divisional applications, each divided from its predecessor, it was a necessary and sufficient condition for a divisional application of that sequence to comply with Art. 76(1), second sentence, EPC 1973 that anything disclosed

in that divisional application be directly and unambiguously derivable from what is disclosed in **each of the preceding applications as filed** (see G 1/06).

The subject matter has to be still present (i.e. it was not unequivocally and definitively abandoned by that time, see J 2/01, OJ 2005, 88; J 15/85, OJ 1986, 395) in each earlier predecessor application at the time the – further – divisional application was filed so that it was thereby existing at all times throughout after its disclosure in the root application as filed up to and including the date of filing the divisional application under consideration. Content which had been omitted on filing a member higher up the sequence could not be re-introduced into that member or in divisional applications lower down the sequence from it. Conversely, content which has been added on filing of a divisional application a sequence higher up could not be claimed in a divisional application down the sequence because according to Art. 76(1) EPC such added matter did not benefit from the filing date of the root application in which it was not disclosed (see G 1/06).

In T 2175/09 the appellant argued that an infringement of Art. 76(1) EPC 1973 in the case of an intermediate higher-generation divisional application (here the grandparent application) did not constitute a ground for opposition under Art. 100(c) EPC 1973. The board held that Art. 100(c) EPC 1973 gave the public the possibility of opposing a patent on the ground that its subject-matter extended beyond the content of the earlier application as filed if an infringement of Art. 76(1) EPC 1973 had been overlooked in examination proceedings. This also applied in the particular case of an infringement of Art. 76(1) EPC 1973 in an intermediate higher-generation divisional application. The grandparent application too is "the earlier application" within the meaning of Art. 100(c) EPC.

2.1.3 Language issues

In T 1076/12 the board held that it was the text of the application as originally filed, even if the text was not in an official language of the EPO, that had to be used, together with any other non-text portions of the application as filed, in order to determine the "content of the earlier application as filed" as referred to in Art. 76(1) EPC. See also chapter II.E.1.2.3.

2.2. Amendments to divisional applications

Divisional applications are new applications which are separate and independent from the earlier applications. Amendments to a divisional application are thus allowed under Art. 123(2) EPC to the **same extent as amendments of any other non-divisional application** (G 1/05, OJ 2008, 271).

Amendments may be allowed even if the divisional application as filed contains – contrary to Art. 76(1), second sentence, first half sentence, EPC – subject-matter extending beyond the earlier application as filed. Such a divisional application is **not** to be considered "invalid" (G 1/05, OJ 2008, 271). It may still be amended during examination proceedings so that it complies with the requirements of Art. 76(1) EPC, provided always, however, that the amendment complies with the other requirements of the EPC (see G 1/05, OJ 2008, 271). Even if the **earlier application is no longer pending**, it remains possible